

24SMCV03122 24SMCV03122

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Case Number: 24SMCV03122 Hearing Date: August 18, 2026 Dept: M

CASE NAME: Cyre, v. AG

Trans LLC, et al.

CASE NO.: 24SMCV03122

MOTION: Motion

for New Trial

HEARING DATE: 8/18/2026

Legal

Standard

"A motion for new trial is a creature of statute; . . ." (Neal v. Montgomery Elevator Co., (1992) 7 Cal. App. 4th 1194, 1198.) A movant must satisfy CCP sections 657 and 659. Under Code of Civil Procedure section 657, a motion for new trial may be granted if there is any:

[¶] 1. Irregularity in the proceedings of the court, jury, or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial. [¶] 2. Misconduct of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors. [¶] 3. Accident or surprise, which ordinary prudence could not have guarded against. [¶] 4. Newly discovered evidence, material for the

party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial. [¶] 5. Excessive or inadequate damages. [¶] 6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law. [¶] 7. Error in law, occurring at the trial and excepted to by the party making the application.

When ruling on an application

for a new trial, the court sits as an independent trier of fact. (Lane v. Hughes Aircraft Co. (2000) 22 Cal.4th 405, 412.) The court, therefore, has broad discretion to order new trials, limited only by the obligation to state its reasons for granting a new trial and the existence of substantial evidence in the record to support those reasons. (Ibid.) In assessing the need for a new trial, the court must rely on its view of the overall record, taking into account such factors, among others, as the nature and seriousness of the alleged misconduct, the general atmosphere, including the judge's control, of the trial, the likelihood of prejudicing the jury, and the efficacy of objection or admonition under all the circumstances. (Dominguez v. Pantalone (1989) 212 Cal.App.3d 201, 211.)

The party intending to move for

a new trial must file with the clerk and serve upon each adverse party a notice of his intention to move for a new trial, designating the grounds upon which the motion will be made and whether the same will be made upon affidavits or the minutes of the court or both, either (1) "after a decision is rendered and before the entry of judgment"; (2) "within 15 days of the date of mailing notice of entry of judgment by the clerk of the court . . . , or service upon him or her by any party of written notice of entry of judgment, or within 180 days after the entry of judgment, whichever is earliest"; or (3) if another party files the first motion for new trial, "each other party shall have 15 days after the service of that notice upon him or her to file and serve a notice of intention to move for a new trial." (CCP § 659.) These time limits are jurisdictional and cannot be extended or waived by stipulation nor court order. (Marriage of Herr (2009) 174 Cal.App.4th 1463, 1469 [while trial judge characterized order as one "granting reconsideration," ruling effectively granted new trial and was untimely].)

Analysis

Defendant AG Trans LLC and Melvin

Armando Ramos Callejas move for new trial on the grounds of an excessive

verdict and inadequacy of the evidence to support the verdict. (CCP §657(5), (6).) Defendants alternatively request that the court condition its order granting new trial on Plaintiff Emily Cyre's rejection of the entry of judgment awarding a remitted amount of damages that this court independently determines is fair and reasonable.

A motion for new trial may not be granted

on the ground of excessive or inadequate damages unless, after weighing the evidence, the court is convinced from the entire record, including reasonable inferences drawn from it, that the court or jury clearly should have reached a different verdict or decision. (CCP § 657.) In this determination, the court has the power to consider the credibility of witnesses and to draw reasonable inferences contrary to those drawn by the jury. (*Casella v. SouthWest Dealer Services, Inc.* (2007) 157 Cal.App.4th 1127, 1159-1160.) The trial court must grant a new trial when the court believes the weight of the evidence to be contrary to the finding of the jury. (*Tice v. Kaiser Co.* (1951) 102 Cal.App.2d 44, 46.) If a motion for new trial is granted because of excessive damages, it must be based upon the totality of the evidence rather than any particular portion of the record which can be readily pointed out. (*Collins v. Lucky Markets, Inc.* (1969) 274 Cal.App.2d 645, 651.) The assessment of damages is primarily the province of jury and secondarily the province of trial court when passing upon a motion for new trial. (*Gersick v. Shilling* (1950) 97 Cal.App.2d 641, 645.) "In the first instance, it is for the jury to fix the amount of damages, and secondly, for the trial judge, on a motion for a new trial, to pass on the question of adequacy." (*Ibid.*) When granting a motion for new trial on ground of excessive damages awarded by a jury, the trial court must find that the jury "clearly" should have reached a different verdict. (*Martinides v. Meyer* (1989) 208 Cal.App.3d 1185, 1195.) "The judge is not permitted to substitute his judgment for that of the jury on the question of damages unless it appears from the record [that] the jury verdict was improper." (*Bigboy v. County of San Diego* (1984) 154 Cal.App.3d 397, 406.) The court also may not use its personal opinion, based on the range of awards in other cases, to conclude that the jury should have clearly reached a different verdict in this case. (*Id.*, at 407.)

Appellate courts, on the other

hand, may only interfere with the jury determination when "the verdict is so large that, at first blush, it shocks the conscience and suggests passion, prejudice or corruption on the part of the jury." (*Bender v. County of Los Angeles* (2013) 217 Cal.App.4th 968, 986.)

“Insufficiency of the evidence in this context means an absence of evidence or that the evidence received lacks probative force to establish the proposition of fact to which it is addressed. [¶] The court does not disregard the verdict, or decide what result it should have reached if the case had been tried without a jury, but instead it should consider the proper weight to be accorded to the evidence and then decide whether or not, in its opinion, there is sufficient credible evidence to support the verdict.” (Dominguez v. Pantalone (1989) 212 Cal.App.3d 201, 215-216, internal quotes omitted.)

The jury awarded Plaintiff with \$2.25 million in noneconomic damages in a case regarding a motor vehicle collision between Plaintiff’s Kia Optima and a truck operated by Callejas. The award reflects damages for Plaintiff’s claimed PTSD with no other medical expenses, wage loss or other economic harm awarded. (Farinpour Decl., Ex. D, 5/18/26 RT, pp. 73:3–13; Special Verdict Form, pp. 2–3.)

Substantial evidence exists on the trial record as a whole for the jury’s award of considerable non-economic damages for Plaintiff’s established PTSD. The truck’s impacted Plaintiff’s vehicle inches behind her head and dragged backwards along the driver’s side of the car, with the truck’s wheel studs tearing a hole through the rear driver-side door, just a few feet behind where she was seated. (Plaintiff’s App., Exs. F, I, J, K.) She described her experienced in that moment as follows: “I remember thinking that – that, um, that it wasn’t going to stop. Like I didn’t – I felt like if I – I could be dying.” App. Ex. A (145:1-6). When she looked back, she saw the truck was “like in my car.” (Id., 144:4-12.) Cyre has a young son who normally rides behind her in the driver-side rear seat. (App. Ex. A, 151:11-19.) Cyre began experiencing significant nightmares and intrusive recollections of the event. Particularly distressing were the nightmares in which her four-year-old son was a passenger behind her in the vehicle at the time of the collision. (App. A, 150-151; Ex. E, pp. 2, 9.) Cyre sought psychological treatment with a therapist who she continues to see. (App. Ex. E.) Cyre credibly testified that she suffered from ongoing fatigue, disturbed sleep, flashbacks triggered by the sound of trucks on the freeway, reliving the “ripping” sound of the collision, avoidance behaviors, irritability and reduced patience, crying, decreased social and sexual engagement, anxiety about driving, panic-like episodes when reminded of the incident, startling response to loud noise, heightened vigilance, and being triggered by seemingly innocuous things. (Id. pp. 3-4.) Cyre also experienced

familial problems as a result. (App. Ex. A pp 158; Ex. B pp. 60, 63.)

Cyre was diagnosed with chronic PTSD based on DSM diagnostic criteria by her well-qualified treating therapist, Jacqueline Nolan. (App. Ex. A pp. 119-120.) The diagnosis was confirmed by Dr. Angelone, a well-qualified board-certified psychologist, who extensively discussed Cyre's diagnostic factors. (App. Ex. A pp. 8-17, 39-43; Ex. E pp. 12-14.) Plaintiff also presented persuasive points on why Dr. Lu's diagnosis should be distrusted, including Dr. Lu's failure to use the "gold standard" tests for PTSD diagnosis. (App. Ex. D, pp. 13, 37-38, 44-45, 53.) Based on the totality of the evidence, the Court would independently agree that it is more likely than not that Cyre suffers from PTSD as a result of the collision.

Ultimately, the jury did not clearly award excessive damages in light of the evidence of Plaintiff's chronic PTSD. The objective record does not support the notion that the jury's calculation was clearly wrong and not within a reasonable range of damages supported by Plaintiff's individualized evidence of PTSD. As recently observed in *Glick v. City of Los Angeles* (July 30, 2026) 2026 WL 2198517 *7, the jury is entrusted with vast discretion in determining damages and an award is not excessive simply because it exceeds amounts awarded in other cases.

Accordingly, the motion is DENIED.